TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans Administration

PART 21—VOCATIONAL REHABILITATION AND EDUCATION

SUBPART B—VETERANS' READJUSTMENT ASSISTANCE ACT OF 1952

CONDITIONS GOVERNING PAYMENT OF EDUCATION AND TRAINING ALLOWANCE

In § 21.2051, paragraphs (b) (1) and (c) are amended to read as follows:

§ 21.2051 *Conditions governing payment of education and training allowance.* * * *

(b) * * *

(1) Where a veteran completes his final examinations and departs from the school prior to the official closing date of the school term, he may be permitted to complete his monthly certification of training on the last day of scheduled attendance in that term certifying as to attendance through the end of such term and to submit the form to the school prior to departure. In such a case the certification to cover attendance in a nonaccredited course will show the succeeding days in that term as days of nonattendance and the certification covering an accredited course will be deemed to show the veteran to have been enrolled in and pursuing his course to the end of the term.

(c) Upon receipt by the Veterans Administration of an enrollment certification from the institution showing that the veteran has entered or reentered training, the veteran will be notified of the official Veterans Administration authorization of his training status. Educational institutions organized on a term, quarter, or semester basis may certify a veteran's enrollment period as being for a term, quarter, semester, or the regular ordinary school year, as the case may be. Such period of enrollment may not include a summer session as part of the enrollment for the regular school year. In all other types of training the enrollment certification will be for the length of the course. Since payments may be made by the Veterans Administration only to veterans pursuing a course during a term of enrollment in accordance with the regularly established policies and regulations of the institution, enrollment for the regular ordinary school year is encouraged and will reduce administrative effort for the school, the veteran, and the Veterans Administration. Where the educational institution is organized on a term, quarter, or semester basis and the educational institution certifies the veteran's enrollment on the enrollment certification to be for an ordinary school year, the veteran and the institution may certify that the veteran was enrolled in and pursuing his course during the regular school vacation periods and recess periods between terms, quarters, or semesters (excluding summer sessions), and the education and training allowance will be paid for such periods unless the veteran fails to return to school at the end of such period, in which event the provisions of § 21.2056 (b) (10) will apply. Where the veteran's enrollment in such an institution is certified by the institution to be only for the term, quarter, or semester, the veteran and the institution shall not certify on the monthly certification of training that the veteran was enrolled in and pursuing his course during periods between terms, quarters, or semesters, and no education and training allowance will be paid for such interim periods.

* * * * *

(Sec. 210, 71 Stat. 91; 38 U. S. C. 2210. Interprets or applies secs. 201–274, 66 Stat. 663–682, as amended; 38 U. S. C. 911–984)

This regulation is effective July 3, 1958.

[SEAL] ROBERT J. LAMPHERE,
Acting Deputy Administrator.

[F. R. Doc. 58-5102; Filed, July 2, 1958; 8:52 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1669]

[325257]

WYOMING

REVOKING EXECUTIVE ORDER NO. 1799 OF JULY 18, 1913

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 1799 of July 18, 1913, which withdrew the following-described lands in Wyoming for use of the Forest Service as the Canyon Creek Administrative Site, in connection with the administration of the Shoshone National Forest, is hereby revoked:

SIXTH PRINCIPAL MERIDIAN

T. 52 N., R. 105 W.,
Sec. 29, W½E½.

The area described contains 163.39 acres.

2. The lands are located in Park County, one-half mile south of the Wapiti entrance to the Shoshone National Forest, via U. S. Highway Nos. 20 and 14, about 20 miles west of Cody. A rocky but heavy loam covers most of the subject land except for rock outcrops and talus slopes. Vegetation consists of sage, needle, bunch, and sedge grasses.

3. No application for the lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

4. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m., on August 2, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour will be governed by the time of filing.

(3) All valid applications and selections under the non-mineral public land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m., on November 1, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

5. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m., on November 1, 1958.

6. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Cheyenne, Wyoming.

ROGER ERNST,
Assistant Secretary of the Interior.

JUNE 27, 1958.

[F. R. Doc. 58-5075; Filed, July 2, 1958; 8:46 a. m.]